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Attorneys for Petitioner,
HYUN JU MINTON

ELECTRONICALLY
F I L E D
Superior Court of California,
County of San Francisco
09/25/2025
Clerk of the Court
BY: MICHAEL RAYRAY
Deputy Clerk

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SAN FRANCISCO

In Re: Estate of Tae Jung Kim	CASE NO. PES-24-307296 **RESPONSE PROBATE NOTES** Date: October 7, 2025 Time: 9:00 a.m. Dept.: 204 Judge:

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In addressing the issues raised by the Probate Examiner in the Probate Examiner's Notes dated September 22, 2025, Petitioners respond as follows:

Issue 1) A copy of the remote appearance information required by LRSF 14.1(C)(6) must be attached to and served with the DE-120 form at least 15 days before the hearing, absent a waiver signed by each person entitled to notice.

On September 22, 2025, Petitioner filed separate Notice of Remote Appearances for Attorneys Ronald P. Wargo and Chadrick J. Cunningham.

Issue 2) The caption of the proposed order must begin with "Order for Final Distribution". See LRSF 14.35(I)(6)(b).

On September 22, 2025, Petitioner re-submitted the proposed order to comply with San Francisco Local Rule 14.35(I)(6)(b) via File&Serve Express as Transaction No. 77137143.

Issue 3) Paragraph 12 of petition: Exhibit A did not include a detailed schedule of receipts required by CRC 7.550(b)(6) & 7.705(b), nor did Exhibit F itemize receipts in compliance with Probate Code section 1062(a)(date, source, nature/purpose of EACH receipt must be separately reported). Note: If any receipt represents a refund of any disbursement from the estate, it must be deducted from the statutory fee base receipts.

Paragraph 12 Exhibit A: *Petitioner inadvertently attached the wrong document as Exhibit A. Petitioner hereby restates Paragraph 12 as follows and attaches Exhibit A*:

"12. **Receipts**. During the period of administration, the Estate received gross receipts (excluding principal) in the total amount of $5,653.14, consisting of interest income, later found liquid assets and refunds for escrow account, 2023 state taxes, and medical expenses. A Summary of all Estate Assets, Gains and Losses on Assets, and Receipts received during the administration is attached hereto and incorporated herein as Exhibit F."

Paragraph 26, Exhibit F: Petitioner inadvertently attached the wrong document as Exhibit F. Petitioner hereby restates Paragraph 26 as follows and attaches Exhibit F:

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"**26. Statutory Compensation**. Petitioner, who is the Administrator of the Estate, and her attorneys have rendered valuable services to the Estate for which statutory compensation is allowed by California Probate Code sections 10800 and 10810, respectively. Petitioner waives her statutory compensation as set forth in ***Exhibit E***, attached hereto and incorporated by reference. Petitioner requests the Court authorize the payment of statutory fees and commissions, from the estate in the statutory amount as noted below:

Attorneys: $19,517.18

A summary of Estate Assets and Receipts used to calculate the Fee Base is attached hereto as ***Exhibit A.*** The statutory compensation amount was determined as follows.

FEE BASE

Assets on Hand at date of death	$	820,205.72
Receipts	$	
Gains on Sale	$	
Losses on Sales	$	
Fee Base:	**$**	**820,205.72**

FEE COMPUTATION

4% of first $100,000	$	4,000.00
3% of next $100,000	$	3,000.00
2% of next $625,858.86	$	12,496.00
Total Fee:	**$**	**19,517.18**"

Issue 4) Paragraphs 15 & 30 & Exhibits B & G: An allegation must be made as to whether petitioner's authority under the decedent's mother's power of attorney has not been terminated, together with an allegation identifying the power of attorney provision(s) authorizing the agent to waive an account (and receive distribution if applicable, as required by LRSF 14.35(C)).

Petitioner hereby represents that decedent's mother's power of attorney has not been terminated. Paragraph 1 of the Massachusetts power of attorney attached as Exhibit G to the petition has general provisions that allow the agent, Petitioner, to receive dividends, interest, and income arising from the mother's assets, and to execute such instruments of transfer and

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assignment as may be necessary or desirable in connection therewith. Paragraph 14 of the same power of attorney permits Petitioner as agent to "compromise, settle, and adjust all claims and demands whatsoever due and hereafter to become due or belonging to . . . [decedent's mother]." Finally, Paragraph 22 of the same power of attorney gives Petitioner "full power to act in the management and disposition of all [decedent's mother's] estate, affairs, and property of every kind and wherever situate, in such manner and with such authority as [decedent's mother] might exercise if personally present, and to do all acts which [Petitioner] deems necessary in carrying out the foregoing."

Issue 5) Paragraph 19b & Exhibit D:

Issue 5) Petitioner hereby adds the below claim to Exhibit D referenced in Paragraph 19b and provides the following status:

Creditor	Amount/Nature	Claim Date	Release Date
Bank of America (4459)	$497,782.13 Paid in full plus interest for $502,019.97 Mortgage	August 28, 2024	Unknown

The above claim was paid through closing on the sale of the real property. See the Final Seller's Statement attached as Exhibit C to the Petition.

Issue 5.i) No DE-174 form is on file in response to Bank of America's creditor claim ($14,086.41) filed on 6/11/24, nor is Bank of America's withdrawal, satisfaction, and/or release of its claim on file.

Petitioner did not file a DE-174 for any creditor, including Bank of America as all debts were deemed valid. The only asset of the estate was a piece of real property which had to be sold to pay for Decedent's debts. Petitioner was unaware of the value the sale of the house would receive, therefore was negotiating with <u>all</u> known creditors to reduce their claims. As of the filing of the Final Petition, Bank of America has not filed their release. Petitioner has included as Exhibit D.1 copies of the checks showing payment of the outstanding claims of Bank of America.

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Issue 5.ii) No DE-174 form is on file in response to Bank of America's creditor claim ($497,782.13) filed on 8/28/24, nor is Bank of America's withdrawal, satisfaction, and/or release of its claim on file.

Petitioner did not file a DE-174 as the claim was secured and was paid out of the closing costs for the sale of the real property. See the Final Seller's Statement attached as Exhibit C to the Petition.

Paragraph 19.c: In addition, Petitioner inadvertently identified the wrong Exhibit. Petitioner hereby restates paragraph 19c as follows:

"c. Estate Administration Expenses. The Estate settled expenses and costs associated with the maintenance of Estate assets, preparation of assets for sale, preparation and payment of Decedent's personal taxes and court fees. The total administration expense is $**91,209.19**. A summary of the administration expenses is set forth in ***Exhibit F."***

Dated: 9/25/2025

FRIEDEMANN GOLDBERG WARGO HESS LLP

Chadrick J. Cunningham

CHADRICK J. CUNNINGHAM
Attorney for Petitioner
HYUN JU MINTON

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VERIFICATION

I, HYUN JU MINTON, am the Petitioner in the above-captioned matter. I am familiar with the contents of the foregoing **RESPONSE TO PROBATE NOTES**. The information supplied therein is based on my own personal knowledge and/or has been supplied by my attorneys or other agents and/or compiled from available documents. The information contained in the foregoing document is true, except as to the matters which were provided by my attorneys or other agents or compiled from available documents, including all contentions and opinions, and, as to those matters, I am informed and believe that they are true.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed this 25th day of September 2025, at Boston, Massachusetts.

HYUN JU MINTON

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EXHIBIT A

Docusign Envelope ID: B35D25D9-A3CE-453B-8F62-827915D145EB

Estate Assets and Receipts

Property	Sale Date	I&A Value	Contract / Sale	Gain / Loss	Ending Value
Real Property					
15 Teresita Blvd #7, San Francisco	12/2/2024	$ 820,000.00	$ 820,000.00	$ -	$ 820,000.00
Bank Accounts					
Bank of America Checking x6147		$ 101.44			$ 101.44
Bank of America Savings x7360		$ 104.28			$ 104.28
Receipts During Administration	Date of Deposit				
Interest Income on Estate Account	12/31/24-6/30/25				$ 61.98
Later found liquid assets held at Wells Fargo x5271	5/16/2025				$ 610.16
Later found liquid assets held at Wells Fargo x9386	5/16/2025				$ 3,239.72
Additional Payment from Escrow on Sale of Residence	1/23/2025				$ 682.61
Refunds for Blue Cross - Ambulance	12/3/2024				$ 1,036.67
Refunds for 2023 CA Tax	12/3/2024				$ 22.00
Total		$ 820,205.72	$ 820,000.00	$ -	$ 825,858.86

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EXHIBIT F

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Estate Administration Expenses

1	**Expenses for Maintenance of Assets**			
	Mortgage	$ 22,962.54		
	HOA Fees	$ 7,079.32		
	Maintenance / Clean-up for Sale	$ 4,670.62		
	Insurace	$ 1,881.00		
	Property Taxes	$ 9,253.40		
		Total	**$**	**45,846.88**
2	**Creditor Claim / Other Expense**			
	Capital One (7747, 2665)	$ 1,134.12		
	US Bank (8020)	$ 622.29		
	Chase (3099, 2623, 8165, 2164, 6158)	$ 26,210.48		
	Bank of America (6263, 3575, 3985, 6002)	$ 12,682.00		
	San Francisco Credit Union	$ 937.18		
		Total	**$**	**41,586.07**
3	**Court filing Fees and Probate Court Costs**			
	Court Filing Fees and efiling Service Fees for Petitions, filing related Probate pleadings.	$ 733.35		
	Publication Cost for Notice of Administration	$ 225.00		
	Fees for Certified Copy Letters of Administration	$ 40.50		
	Fee for Karen Simons, Appraisal for Inventory and Appraisal	$ 845.00		
		Total	**$**	**1,843.85**
4	**Estate Expenses - During Administration**			
	Bond	$ 1,586.20		
	Medicial Expenses	$ 346.19		
		Total	**$**	**1,932.39**
	Total Administrative Fees		**$**	**91,209.19**

PROOF OF SERVICE

STATE OF CALIFORNIA, COUNTY OF SONOMA

I am employed in the County of Sonoma, State of California. I am over the age of eighteen (18) and not a party to the within action. My business address is 400 Aviation Boulevard, Suite 200, Santa Rosa, California 95403.

On September 25, 2025, I served the foregoing document(s) described as:

RESPONSE TO PROBATE NOTES

on the interested parties in this action as follows:

Hyun Ju Minton,
Power of Attorney for Bok Za Kim
6 Socrates Way
Winchester, MA 01890

Bok Za Kim
93 Hazen Road
Shirley, MA 01464

[X] BY UNITED STATES MAIL

I enclosed the document(s) listed above in an envelope or package addressed to the person(s) at the address(es) listed above and placed the envelope or package for collection and mailing following this firm's ordinary business practices. I am readily familiar with this firm's practice of collecting and processing correspondence for mailing. Under that practice, on the same day that correspondence is placed for collection and mailing, it is deposited in the ordinary course of business with the United States Postal Service with postage thereon fully prepaid at Santa Rosa, California. I am aware that, on motion of the party served, service is presumed invalid if postal cancellation date or postage meter date is more than one day after the date of deposit for mailing.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on September 25, 2025, at Santa Rosa, California.

Brenda Martin

Brenda Martin